

19b. For the purposes of Part I or II of this Schedule any new born child found exposed in any place shall be presumed, until the contrary is shown, to have been born there of a mother permanently resident there; and if he is treated by virtue of this section as so born, the date of the finding shall be taken to be the date of the birth.

19c. For the purposes of Part I or II of this Schedule a person shall be treated as having been at any time permanently resident in the Federation if, but only if, he was then resident in the Federation and either—

- (a) he then had permission, granted without limit of time under any federal law, to reside there; or
- (b) it is certified by the Federal Government that he is to be treated for those purposes as a permanent resident in the Federation.

20. (1) In calculating for the purposes of Part III of this Constitution any residence in the Federation—

- (a) a period of absence from the Federation of less than six months;
- (b) a period of absence from the Federation for the purposes of education of such kind, in such country and for such time as may from time to time be either generally or specially approved by the Minister;
- (c) a period of absence from the Federation for reasons of health;
- (d) a period of absence from the Federation on duty in the service of the Federation or of any State, where such period is not inconsistent with the essential continuity of such residence; and
- (e) a period of absence from the Federation for any other cause prescribed generally or specially by the Minister,

shall be treated as residence in the Federation.

(2) In calculating for the purposes of Part III of this Constitution any residence in the Federation—

- (a) a period during which a person was not lawfully resident in the Federation;
- (b) a period spent as an inmate of any prison or as a person detained in lawful custody in any other place, other than a mental hospital, under the provisions of any written law of the Federation; and
- (c) a period during which a person is allowed to remain temporarily in the Federation under the authority of any pass issued or exemption order made under the provisions of any written law of the Federation relating to immigration,

shall not, except in the case of any period referred to in paragraph (c), with the consent of the Minister, be treated as residence in the Federation.

(3) For the purposes of Part III of this Constitution a person shall be deemed to be resident in the Federation on a particular day if he had been resident in the Federation before that day and that day is included in any period of absence referred to in subsection (1).

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NOTES

Second Schedule, Part III—(cont.)

Section 20

1. The present section was substituted by Act 14/1962, subsection 27(2), in force from 01-10-1962. The original section read as follows:

“20. In calculating for the purposes of Part III a period of residence in the Federation—

- (a) a period of absence from the Federation of less than six months;
- (b) a period of absence from the Federation for the purposes of education of such kind, in such country and for such time, as may from time to time be either generally or specially approved by the Minister; and
- (c) a period of absence from the Federation for reasons of health or any other cause prescribed generally or specially by the Minister,

shall be treated as residence in the Federation; and for the purposes of Part III a person shall be deemed to be resident in the Federation on a particular day if he had been resident in the Federation before that day and that day is included in any such period of absence as aforesaid.”.

2. *Subsections (1)(d) & (3): See subsection 20(4).*

3. *Subsection 20(4)*

(a) Added by Act 26/1963, subsection 33(3), in force from 16-09-1963.

(b) The words “or Singapore” which appeared after the words “Borneo States” were deleted by Act 59/1966, section 2, in force from 09-08-1965.

(c) The words “the States of Sabah and Sarawak” substituted for the words “the Borneo States” by Act A354, section 43, in force from 27-08-1976.

Section 21

The words “consulate of the Federation” substituted for the words “Malayan consulate” by Act 26/1963, subsection 33(3), in force from 16-09-1963.

Section 22

Added by Act 26/1963, subsection 33(3), in force from 16-09-1963.

(4) This section shall apply in relation to any part of the Federation and the territories comprised in that part before Malaysia Day as it applies in relation to the Federation as a whole, and the reference in paragraph (1)(d) to the service of a State shall include, in relation to those territories, the service of any Government having jurisdiction therein before Malaysia Day; and in relation to Malaysia Day or any later day subsection (3) shall apply as if the territories comprised in the States of Sabah and Sarawak had at all times formed part of the Federation.

21. For the purposes of Part III of this Constitution “consulate of the Federation” includes any office exercising consular functions on behalf of the Federation.

22. Except in so far as the context otherwise requires, references in this Schedule to Part III of this Constitution are to be read as including references to this Schedule.

THIRD SCHEDULE

[Articles 32 and 33]

Election of Yang di-Pertuan Agong and Timbalan Yang di-Pertuan Agong

PART I

ELECTION OF YANG DI-PERTUAN AGONG

1. (1) A Ruler is qualified to be elected Yang di-Pertuan Agong unless—
 - (a) he is a minor; or
 - (b) he has notified the Keeper of the Rulers’ Seal that he does not desire to be elected; or
 - (c) the Conference of Rulers by secret ballot resolves that he is unsuitable by reason of infirmity of mind or body or for any other cause to exercise the functions of Yang di-Pertuan Agong.
- (2) A resolution under this section shall not be carried unless at least five members of the Conference have voted in favour of it.
2. The Conference of Rulers shall offer the office of Yang di-Pertuan Agong to the Ruler qualified for election whose State is first on the election list described in section 4 and, if he does not accept the office, to the Ruler whose State is next on the list, and so on until a Ruler accepts the office.
3. When a Ruler to whom the office of Yang di-Pertuan Agong has been offered in accordance with section 2 has accepted the office, the Conference of Rulers shall declare him elected and the Keeper of the Rulers’ Seal shall notify the result of the election in writing to both Houses of Parliament.

Federal Constitution

NOTES

Third Schedule

See Art. 160(2) definition of “Ruler”.

Heading

The words “Timbalan Yang di-Pertuan Agong” substituted for the words “Deputy Supreme Head” by Act A354, section 11, in force from 27-08-1976.

PART I

Section 2: See section 3.

Section 4: See section 2.

Paragraph 4(1)(a)

The words “Their Royal Highnesses” substituted for the words “Their Highnesses” by Act A31, section 2, in force from 24-03-1971.

Subsection 4(3): See section 10.

4. (1) The election list—

- (a) shall for the purposes of the first election be a list comprising the States of all the Rulers in the order in which Their Royal Highnesses then recognize precedence among themselves;
- (b) shall for the purposes of subsequent elections be that list as varied in accordance with subsection (2) until it is reconstituted under subsection (3), and shall then be the list so reconstituted, but varied, for the purposes of further elections, in accordance with subsection (4).

(2) That list in force at the first election shall be varied as follows:

- (a) after each election any States preceding on the list the State whose Ruler was elected shall be transferred (in the order in which they are then on the list) to the end of the list, and the State whose Ruler was elected shall be omitted;
- (b) whenever there is a change in the Ruler of a State then on the list, that State shall be transferred to the end of the list (and if on the same day there is a change in the Rulers of more than one such State, those States shall be so transferred in the order in which they are then on the list).

(3) When no State remains on the list as varied in accordance with subsection (2), or if at an election no Ruler of a State on that list is qualified for election or accepts office, the election list shall be reconstituted so as to comprise again the States of all the Rulers, but in the following order, that is to say, those whose Rulers have held the office of Yang di-Pertuan Agong in the order in which their Rulers have held that office, and the others (if any) following them in the order in which they were on the list before it was reconstituted.

(4) After each election held in accordance with the reconstituted list that list shall be varied as follows:

- (a) any State preceding on the list the State whose Ruler was elected shall be transferred (in the order in which they are then on the list) to the end of the list; and
- (b) the State whose Ruler was elected shall then be placed last.

PART II

ELECTION OF TIMBALAN YANG DI-PERTUAN AGONG

5. A Ruler is qualified to be elected Timbalan Yang di-Pertuan Agong unless—

- (a) he would not be qualified to be elected Yang di-Pertuan Agong; or
- (b) he has notified the Keeper of the Rulers' Seal that he does not desire to be elected.

6. The Conference of Rulers shall not elect a Timbalan Yang di-Pertuan Agong while the office of Yang di-Pertuan Agong is vacant.

Federal Constitution

NOTES

Third Schedule—(cont.)

PART II

In the heading, the words “TIMBALAN YANG DI-PERTUAN AGONG” substituted for the words “DEPUTY SUPREME HEAD” by Act A354, section 11, in force from 27-08-1976.

Sections 5, 6 & 7

The words “Timbalan Yang di-Pertuan Agong” substituted for the words “Deputy Supreme Head” by Act A354, section 11, in force from 27-08-1976.

PART IV

Section 9

This section was repealed by Act 25/1963, section 8, in force from 29-08-1963 and read as follows:

“9. An election held in accordance with this Schedule before Merdeka Day shall be valid and shall take effect on that day.”

7. The Conference of Rulers shall offer the office of Timbalan Yang di-Pertuan Agong to the Ruler qualified for election who, on the death of the Yang di-Pertuan Agong last elected, would be the first entitled to be offered the office of the Yang di-Pertuan Agong and, if he does not accept it, to the next and so on until a Ruler accepts the office.

PART III

REMOVAL OF YANG DI-PERTUAN AGONG

8. A resolution of the Conference of Rulers to remove the Yang di-Pertuan Agong from office shall not be carried unless at least five members of the Conference have voted in favour of it.

PART IV

GENERAL

9. (*Repealed*).

10. In subsection 4(3) the expression “Ruler” includes a past Ruler.

FOURTH SCHEDULE

[Article 37]

Oaths of Office of Yang di-Pertuan Agong and Timbalan Yang di-Pertuan Agong

PART I

OATH OF YANG DI-PERTUAN AGONG

Kami ibni
Yang di-Pertuan Agong bagi Malaysia bersumpah dengan melafazkan:

Wallahi;

Wabillahi;

Watallahi;

maka dengan lafaz ini berikrarlah Kami dengan sesungguhnya dan dengan sebenarnya mengaku akan taat setia pada menjalankan dengan adilnya pemerintahan bagi Malaysia dengan mengikut sebagaimana undang-undang dan Perlembagaan yang telah disah dan dimasyhurkan dan yang akan disah dan dimasyhurkan di masa hadapan ini. Dan lagi Kami berikrar mengaku dengan sesungguhnya dan dengan sebenarnya memelihara pada setiap masa Agama Islam dan berdiri tetap di atas pemerintahan yang adil dan aman di dalam Negeri.

Federal Constitution

NOTES

Fourth Schedule

The word “Malaysia” substituted for the words “Persekutuan Tanah Melayu” in Parts I and II and for the words “the Federation of Malaya” in Part III by Act 26/1963, section 70, in force from 16-09-1963.

PART II

OATH OF TIMBALAN YANG DI-PERTUAN AGONG

Kami ibni
yang telah dilantik menjadi Timbalan Yang di-Pertuan Agong bagi Malaysia
bersumpah dengan melafazkan:

Wallahi;

Wabillahi;

Watallahi;

dan dengan lafaz ini berikrarlah Kami dengan sesungguhnya dan dengan sebenarnya
mengaku akan taat setia pada menjalankan tanggungan Kami yang telah
ditetapkan dan yang akan ditetapkan pada suatu masa ke suatu masa yang ke
hadapan ini oleh undang-undang dan Perlembagaan Negeri Malaysia.

PART III

ENGLISH TRANSLATIONS

We ibni
Yang di-Pertuan Agong of Malaysia do hereby swear:

Wallahi;

Wabillahi;

Watallahi;

and by virtue of that oath do solemnly and truly declare that We shall justly
and faithfully perform (carry out) our duties in the administration of Malaysia
in accordance with its laws and Constitution which have been promulgated
or which may be promulgated from time to time in the future. Further We do
solemnly and truly declare that We shall at all time protect the Religion of
Islam and uphold the rules of law and order in the Country.

We ibni
being elected to be the Timbalan Yang di-Pertuan Agong of Malaysia do
hereby swear:

Wallahi;

Wabillahi;

Watallahi;

and by virtue of that oath do solemnly and truly declare that We shall
faithfully perform (carry out) our duties as Timbalan Yang di-Pertuan Agong
as laid down and as may from time to time be laid down by the laws and
the Constitution of Malaysia.

Federal Constitution

NOTES

Fourth Schedule—(cont.)

PART III

The words “religion of Islam” substituted for the words “Muslim Religion” by Act A354, section 45, in force from 27-08-1976.